

MASTER SERVICES AGREEMENT

Agreement Number: MSA-2024-00847

Effective Date: January 1, 2024

Parties: Nexus Technology Solutions Ltd. ("Service Provider") and Meridian Financial Group Inc. ("Client")

RECITALS

WHEREAS, Service Provider is in the business of providing enterprise software development, cloud infrastructure management, data analytics, and related professional services;

WHEREAS, Client desires to engage Service Provider to perform certain services as described herein, and Service Provider desires to perform such services for Client;

WHEREAS, the parties desire to establish the terms and conditions under which Service Provider will provide services to Client on an ongoing basis;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

PART I — GENERAL TERMS AND CONDITIONS

Section 1 — Definitions

1.1 Defined Terms

As used in this Agreement, the following terms shall have the meanings set forth below:

“Affiliate” means, with respect to any entity, any other entity that directly or indirectly controls, is controlled by, or is under common control with such entity, where “control” means the possession of more than fifty percent (50%) of the outstanding voting securities or the right to direct the management and policies of such entity.

“Confidential Information” means any and all information or data that has or could have commercial value or other utility in the business in which the disclosing party is engaged, including but not limited to: (a) technical and business information relating to proprietary ideas, patentable ideas, trade secrets, research and development, technical data, engineering designs, software code, databases, know-how, formulae, compositions, processes, technology, discoveries, and improvements; (b) business and financial information, including forecasts, business plans, pricing, costs, supplier lists, customer information, and marketing strategies; and © all information identified as confidential at the time of disclosure.

“Deliverable” means any work product, report, document, software, code, design, specification, or other tangible item that Service Provider is required to produce and deliver to Client under a Statement of Work.

“Documentation” means all user manuals, technical manuals, installation guides, training materials, and other written or electronic materials provided by Service Provider in connection with the Services.

“Intellectual Property Rights” means all patents, copyrights, trademarks, service marks, trade secrets, moral rights, know-how, and any other intellectual property rights recognized in any jurisdiction worldwide, whether registered or unregistered.

“Personal Data” means any information that directly or indirectly identifies a natural person, as defined under applicable data protection laws, including but not limited to the General Data Protection Regulation (EU) 2016/679 (“GDPR”) and the California Consumer Privacy Act (“CCPA”).

“Service Level Agreement” or “SLA” means the performance standards, uptime guarantees, response times, and remedies set forth in Schedule B of this Agreement.

“Services” means the professional services, software development, infrastructure management, consulting, maintenance, support, and any other services performed or to be performed by Service Provider for Client, as more particularly described in one or more Statements of Work.

“Statement of Work” or “SOW” means a written document executed by both parties that describes a specific scope of services, Deliverables, timeline, fees, and other project-specific terms, which is incorporated into and subject to this Agreement.

“Subcontractor” means any third party engaged by Service Provider to perform any portion of the Services.

1.2 Interpretation

In this Agreement: (a) headings are for convenience only and do not affect interpretation; (b) the singular includes the plural and vice versa; © a reference to a statute or regulation includes all amendments, consolidations, or replacements thereof; (d) “including” means “including without limitation”; (e) “days” means calendar days unless expressly stated to be “business days.”

Section 2 — Engagement and Scope of Services

2.1 Engagement

Client hereby engages Service Provider, and Service Provider hereby agrees to provide, the Services described in Statements of Work executed from time to time by the parties. Each SOW shall be deemed incorporated into this Agreement by reference.

2.2 Statements of Work

Each Statement of Work shall include at minimum the following:

SOW Element	Description	Required
Project Title	Unique identifier for the engagement	Yes
Scope Description	Detailed description of services to be performed	Yes
Deliverables List	Specific outputs with acceptance criteria	Yes
Project Timeline	Milestones, deadlines, and completion dates	Yes
Fee Structure	Fixed fee, T&M rates, or hybrid pricing	Yes
Resource Allocation	Named personnel or role types	Yes
Change Control Procedure	Process for scope modifications	Yes

Acceptance Criteria	Objective criteria for Deliverable approval	Yes
Dependencies	Client obligations and prerequisites	Yes
Assumptions	Material assumptions underlying the estimate	Recommended
Escalation Path	Contacts for dispute resolution	Recommended

2.3 Order of Precedence

In the event of any conflict or inconsistency between the terms of this Agreement and any Statement of Work, the terms of this Agreement shall control unless the Statement of Work expressly states that it supersedes a specific provision of this Agreement, in which case the Statement of Work shall control solely with respect to that provision.

2.4 Change Orders

Either party may request changes to any SOW by submitting a written Change Order Request ("COR") specifying: (a) the proposed modification to the scope, schedule, or fees; (b) the reason for the proposed change; and © the estimated impact on timeline and cost. No change to a SOW shall be effective unless and until both parties have executed a written Change Order.

Section 3 — Service Provider Obligations

3.1 Performance Standards

Service Provider shall:

- Perform all Services in a professional and workmanlike manner consistent with industry standards
- Assign qualified personnel with appropriate skills and experience
- Maintain sufficient staffing levels to meet agreed timelines
- Comply with all applicable laws, regulations, and industry standards
- Promptly notify Client of any circumstances likely to cause a material delay or cost overrun
- Obtain and maintain all licenses, permits, and certifications required for performance of the Services

3.2 Personnel

3.2.1 Key Personnel

The following individuals are designated as Key Personnel for purposes of this Agreement:

Role	Name	Responsibilities	Minimum Availability
Engagement Manager	[To be designated]	Overall engagement oversight	50% FTE
Technical Lead	[To be designated]	Architecture and technical direction	75% FTE
Project Manager	[To be designated]	Day-to-day coordination	100% FTE
Security Officer	[To be designated]	Security compliance and review	25% FTE
QA Lead	[To be designated]	Testing strategy and execution	50% FTE

3.2.2 Personnel Changes

Service Provider shall not replace Key Personnel without providing Client with at least thirty (30) days' prior written notice, except in cases of: (a) resignation; (b) termination for cause; © long-term illness or incapacity; or (d) circumstances beyond Service Provider's reasonable control. Any replacement personnel shall possess qualifications and experience substantially equivalent to those of the replaced individual.

3.2.3 Background Checks

All Service Provider personnel assigned to work on Client systems or with access to Client data must have successfully completed background checks consistent with Client's standard vendor requirements policy, as set forth in Schedule D.

3.3 Subcontractors

Service Provider shall not engage any Subcontractor to perform any material portion of the Services without Client's prior written consent, which shall not be unreasonably

withheld. Service Provider shall be responsible for the performance of any approved Subcontractor to the same extent as if Service Provider had performed such Services directly.

Section 4 — Client Obligations

4.1 Client Responsibilities

Client shall:

- Provide Service Provider with timely access to Client systems, facilities, and personnel reasonably necessary for performance of the Services
- Designate a Client project manager as the primary point of contact
- Review and approve Deliverables within the timeframes specified in the applicable SOW
- Provide accurate and complete information, data, and requirements
- Promptly notify Service Provider of any changes to Client systems or business processes that may affect the Services
- Ensure that Client personnel cooperate reasonably with Service Provider

4.2 Client-Caused Delays

If Service Provider's performance is materially delayed or prevented due to Client's failure to fulfill its obligations under this Section 4, Service Provider shall be excused from performance to the extent of such delay, and the parties shall negotiate in good faith to adjust the project timeline and, if applicable, fees to account for such delay.

4.3 Third-Party Software and Licenses

Client is solely responsible for obtaining all necessary licenses and consents for any third-party software, data, or other materials provided by Client to Service Provider for use in connection with the Services.

Section 5 — Fees, Invoicing, and Payment

5.1 Fee Schedules

5.1.1 Standard Hourly Rates

The following hourly rates apply to Time and Materials engagements:

Role Category	Standard Rate (USD/hr)	Overtime Rate (USD/hr)	Weekend/Holiday Rate (USD/hr)
Principal Consultant	\$285	\$427.50	\$570
Senior Software Engineer	\$245	\$367.50	\$490
Software Engineer	\$195	\$292.50	\$390
Junior Software Engineer	\$145	\$217.50	\$290
Data Scientist	\$265	\$397.50	\$530
ML Engineer	\$255	\$382.50	\$510
DevOps / Cloud Engineer	\$235	\$352.50	\$470
QA Engineer	\$175	\$262.50	\$350
Business Analyst	\$185	\$277.50	\$370
Project Manager	\$205	\$307.50	\$410
Security Consultant	\$275	\$412.50	\$550
Technical Writer	\$135	\$202.50	\$270

5.1.2 Annual Rate Adjustments

Hourly rates shall be subject to an annual adjustment on January 1 of each calendar year, not to exceed the greater of: (a) five percent (5%); or (b) the percentage change in the Consumer Price Index for All Urban Consumers (CPI-U) for the preceding twelve-month period, as published by the U.S. Bureau of Labor Statistics. Service Provider shall provide Client with at least sixty (60) days' written notice of any rate adjustment.

5.1.3 Volume Discounts

The following volume discounts apply to annual T&M billings under this Agreement:

Annual Billing Threshold	Discount Applied
\$0 — \$499,999	0% (Standard rates)
\$500,000 — \$999,999	5% retroactive discount
\$1,000,000 — \$1,999,999	8% retroactive discount
\$2,000,000 — \$4,999,999	12% retroactive discount
\$5,000,000 and above	15% retroactive discount

Volume discounts are calculated annually in arrears and credited against the following quarter's invoices.

5.2 Expenses

Client shall reimburse Service Provider for reasonable out-of-pocket expenses incurred in connection with the Services, including travel, lodging, and meals, subject to the following limitations:

Expense Category	Policy
Domestic Air Travel	Economy class; business class requires Client pre-approval
International Air Travel	Business class permitted for flights exceeding 6 hours
Hotel Accommodation	Not to exceed \$350/night in major metropolitan areas; \$250/night elsewhere
Ground Transportation	Actual cost; rideshare services preferred over rental vehicles
Meals (Travel Days)	Not to exceed \$75/day per person
Meals (Non-Travel Days)	Not reimbursable without Client pre-approval
Telecommunications	Reasonable roaming charges; personal mobile plans not reimbursable
Other Expenses > \$500	Require prior written Client approval

All expense reimbursement requests must be accompanied by receipts and submitted within thirty (30) days of incurrence.

5.3 Invoicing

5.3.1 Invoice Frequency

Engagement Type	Invoice Frequency
Time and Materials	Monthly, in arrears
Fixed Price — Milestones	Upon milestone completion and acceptance
Fixed Price — Monthly	Monthly, in advance
Retainer	Monthly, in advance on the 1st business day
SaaS / Subscription	Annually in advance, or as specified in SOW

5.3.2 Invoice Contents

Each invoice shall include: (a) Agreement and SOW reference numbers; (b) invoice date and number; (c) billing period; (d) itemized description of services rendered; (e) hours worked by role (for T&M); (f) applicable rates and discounts; (g) expense detail with receipts; and (h) cumulative amounts billed to date under the applicable SOW.

5.4 Payment Terms

Client shall pay all undisputed invoice amounts within thirty (30) days of receipt. Disputed amounts shall be subject to the dispute resolution procedure in Section 5.5. Late payments shall accrue interest at the rate of one and one-half percent (1.5%) per month, or the maximum rate permitted by applicable law, whichever is less, compounding monthly from the due date until the date of payment.

5.5 Invoice Disputes

If Client disputes any portion of an invoice, Client shall: (a) pay all undisputed amounts by the due date; (b) provide Service Provider with written notice of the disputed amount within fifteen (15) days of receipt of the invoice; (c) specify in reasonable detail the basis for the dispute. The parties shall negotiate in good faith to resolve the dispute within thirty (30) days of Service Provider's receipt of such notice.

5.6 Taxes

All fees stated in this Agreement are exclusive of applicable taxes. Client shall be responsible for all sales, use, value-added, goods and services, and similar taxes imposed

on the transactions contemplated by this Agreement, excluding taxes based on Service Provider's net income or employment taxes for Service Provider's personnel.

Section 6 — Intellectual Property

6.1 Pre-Existing IP

Each party retains all Intellectual Property Rights in and to its Pre-Existing IP. **“Pre-Existing IP”** means all IP developed prior to or independently of this Agreement. Service Provider's Pre-Existing IP includes, but is not limited to, its proprietary frameworks, tools, libraries, methodologies, templates, and accelerators listed in Schedule E.

6.2 Work Product Ownership

6.2.1 Custom Development

Subject to payment in full of all fees, Service Provider hereby assigns to Client all right, title, and interest in and to all Deliverables that are: (a) created specifically and solely for Client under a SOW; (b) not based on or derived from Service Provider's Pre-Existing IP; and © designated as “Client-Owned” in the applicable SOW.

6.2.2 General Tools and Frameworks

Notwithstanding Section 6.2.1, Service Provider retains all rights to general-purpose tools, frameworks, methodologies, and know-how developed during the engagement that are not specific to Client's business, products, or Confidential Information, even if incorporated into Deliverables, provided that Service Provider grants Client a non-exclusive, perpetual, royalty-free license to use such components as incorporated in the Deliverables.

6.3 License to Pre-Existing IP

To the extent that any Deliverable incorporates Service Provider's Pre-Existing IP, Service Provider grants Client a non-exclusive, non-transferable, worldwide, royalty-free license to use such Pre-Existing IP solely as incorporated in and necessary for the use of the Deliverable.

6.4 Client Materials License

Client grants Service Provider a limited, non-exclusive, non-transferable license to use Client's data, content, trademarks, and other materials solely to the extent necessary to perform the Services under this Agreement.

6.5 Open Source Components

Service Provider shall disclose to Client any open source software components incorporated into any Deliverable, specifying the applicable open source license. Service Provider shall not incorporate any open source components with "copyleft" or "share-alike" license terms (including GPL, LGPL, AGPL, or EUPL) without Client's prior written approval.

Section 7 — Confidentiality

7.1 Obligations of Confidentiality

Each party (as "Receiving Party") agrees to: (a) hold the other party's Confidential Information in strict confidence; (b) not disclose such information to any third party without the prior written consent of the disclosing party; © use such information solely for the purposes of this Agreement; (d) protect such information with at least the same degree of care used to protect its own confidential information, but in no event less than reasonable care; and (e) limit access to such information to its employees, contractors, and advisors who have a need to know and are bound by confidentiality obligations at least as protective as those in this Agreement.

7.2 Exceptions

The obligations of Section 7.1 do not apply to information that: (a) is or becomes publicly available through no breach of this Agreement; (b) was rightfully known to the Receiving Party prior to disclosure; © is rightfully received from a third party without restriction; (d) is independently developed by the Receiving Party without use of the Confidential Information; or (e) is required to be disclosed by law, regulation, or court order, provided the Receiving Party gives prompt written notice to the disclosing party and reasonably cooperates in seeking a protective order.

7.3 Return or Destruction

Upon expiration or termination of this Agreement, or upon request by the disclosing party, the Receiving Party shall promptly return or destroy all Confidential Information in

its possession or control, and shall certify such return or destruction in writing.

7.4 Survival

The obligations of this Section 7 shall survive the expiration or termination of this Agreement for a period of five (5) years; provided, however, that obligations with respect to trade secrets shall survive indefinitely.

Section 8 — Data Protection and Privacy

8.1 Compliance with Data Protection Laws

Each party shall comply with all applicable data protection and privacy laws in connection with the performance of this Agreement, including:

Regulation	Jurisdiction	Key Requirements
GDPR (EU) 2016/679	European Union	Lawful basis, data subject rights, DPA required
UK GDPR / DPA 2018	United Kingdom	Post-Brexit GDPR equivalent
CCPA / CPRA	California, USA	Consumer rights, opt-out, no selling of data
PIPEDA	Canada	Consent-based collection and use
PDPA	Singapore	Consent, purpose limitation, data portability
LGPD	Brazil	Similar to GDPR; DPA required for transfers
POPIA	South Africa	Processing conditions, data subject rights

8.2 Data Processing Agreement

To the extent Service Provider processes Personal Data on behalf of Client, the parties shall execute a separate Data Processing Agreement (“DPA”) that includes the provisions required by applicable law, including but not limited to standard contractual clauses for international data transfers. The DPA is attached hereto as Schedule F and incorporated by reference.

8.3 Security Measures

Service Provider shall implement and maintain appropriate technical and organizational measures to protect Personal Data, including at minimum:

8.3.1 Technical Controls

Control Category	Minimum Standard
Encryption at Rest	AES-256 or equivalent
Encryption in Transit	TLS 1.2 or higher
Access Control	Role-based, least privilege
Multi-Factor Authentication	Required for all privileged access
Vulnerability Management	Monthly scanning; critical patches within 72 hours
Penetration Testing	Annual third-party assessment
Intrusion Detection	Real-time monitoring with 24/7 alerting
Logging & Audit Trails	Retained for minimum 12 months
Data Backup	Daily; recovery tested quarterly
Incident Response	Documented plan; tested annually

8.3.2 Organizational Controls

- Background checks for all personnel with access to Personal Data
- Annual security awareness training
- Documented information security policy reviewed annually
- Dedicated Information Security Officer
- ISO 27001 certification or equivalent (maintained and auditable)
- SOC 2 Type II audit (annual)

8.4 Data Breach Notification

Service Provider shall notify Client of any confirmed or reasonably suspected Personal Data breach within forty-eight (48) hours of becoming aware of such breach. Such notification shall include: (a) a description of the nature of the breach; (b) the categories and approximate number of data subjects concerned; © the approximate number of

records concerned; (d) the likely consequences; (e) measures taken or proposed to address the breach and mitigate its effects.

Section 9 — Service Levels and Performance

9.1 Uptime Commitments

For managed services and hosted solutions, Service Provider guarantees the following minimum uptime levels:

Service Tier	Monthly Uptime SLA	Max Downtime/Month	Response Time (P1)
Platinum	99.99%	4.38 minutes	15 minutes
Gold	99.95%	21.9 minutes	30 minutes
Silver	99.9%	43.8 minutes	1 hour
Bronze	99.5%	3.65 hours	4 hours
Standard	99.0%	7.3 hours	8 hours

Client’s contracted service tier is specified in the applicable SOW.

9.2 Incident Classification

Priority	Definition	Initial Response	Status Updates	Target Resolution
P1 — Critical	Complete service outage; data loss risk; security breach	15 minutes	Every 30 minutes	4 hours
P2 — High	Major feature unavailable; significant performance degradation	30 minutes	Every 2 hours	8 hours
P3 — Medium	Minor feature impacted; workaround available	2 hours	Every 8 hours	3 business days
P4 — Low	Cosmetic issue; general inquiry; enhancement request	8 hours	Weekly	Next release cycle

9.3 SLA Credits

In the event Service Provider fails to meet the uptime SLA for any calendar month, Client shall receive service credits as follows:

Monthly Uptime Achieved	Credit as % of Monthly Fee
99.0% — below contracted SLA	5%
97.0% — 98.99%	10%
95.0% — 96.99%	20%
Below 95.0%	30%

SLA credits are Client's sole and exclusive remedy for Service Provider's failure to meet uptime commitments, and shall be applied as credits against future invoices. Credits shall not exceed the total monthly fees for the affected service.

9.4 Exclusions

Uptime SLA commitments do not apply to downtime caused by: (a) Client's actions or omissions; (b) force majeure events; (c) scheduled maintenance windows (minimum 72 hours advance notice); (d) third-party service failures outside Service Provider's reasonable control; or (e) Client's failure to implement recommended security patches within thirty (30) days of notification.

PART II — SPECIALIZED TERMS

Section 10 — Software Development Terms

10.1 Development Methodology

Unless otherwise specified in a SOW, Service Provider shall employ an Agile development methodology, including:

- Sprint cycles of two (2) weeks
- Sprint planning, review, and retrospective ceremonies
- Daily stand-up meetings (optional based on Client preference)

- Backlog grooming sessions bi-weekly
- Regular product demos at end of each sprint

10.2 Code Quality Standards

All code produced under this Agreement shall:

Standard	Requirement
Test Coverage	Minimum 80% unit test coverage; 70% integration coverage
Code Review	All production code reviewed by at least one senior engineer
Static Analysis	Zero critical issues in approved static analysis tools
Documentation	All public APIs documented; README maintained
Version Control	Git; branching strategy per agreed GitFlow process
Dependency Management	No known critical CVEs in dependencies; reviewed monthly
Performance Benchmarks	Agreed benchmarks documented and tested prior to release
Accessibility	WCAG 2.1 Level AA compliance for all user interfaces

10.3 Acceptance Testing

10.3.1 Process

Upon delivery of each Deliverable or milestone, Client shall have fifteen (15) business days to conduct acceptance testing (“Acceptance Period”). During the Acceptance Period, Client shall notify Service Provider in writing of any material defects (“Defects”). Service Provider shall correct all Defects within the timeframes below and resubmit the Deliverable for re-testing.

10.3.2 Defect Severity and Remediation

Severity	Definition	Fix Timeframe
Blocker	Prevents core functionality; no workaround	2 business days

Critical	Major feature broken; partial workaround	5 business days
Major	Significant defect; full workaround available	10 business days
Minor	Cosmetic or minor functional issue	Next sprint

10.3.3 Deemed Acceptance

If Client does not provide written notification of Defects within the Acceptance Period, the Deliverable shall be deemed accepted.

Section 11 — Cloud Infrastructure Terms

11.1 Cloud Platform Support

Service Provider supports the following cloud platforms:

Platform	Supported Services	Certification Level
Amazon Web Services (AWS)	Compute, Storage, Database, ML, Security, Networking	AWS Advanced Partner; 50+ certified engineers
Microsoft Azure	Compute, Storage, Database, AI/ML, DevOps, Security	Azure Expert MSP; 35+ certified engineers
Google Cloud Platform (GCP)	Compute, Storage, BigQuery, ML, Kubernetes	GCP Premier Partner; 25+ certified engineers
Multi-Cloud / Hybrid	Cross-platform orchestration, Kubernetes, Terraform	Platform-agnostic architects available

11.2 Infrastructure as Code

All cloud infrastructure provisioned under this Agreement shall be defined and managed as code using approved IaC tools:

- **Terraform** (primary) — all multi-cloud and AWS/Azure/GCP deployments
- **AWS CloudFormation** — AWS-native alternative when specified
- **Azure Resource Manager (ARM) / Bicep** — Azure-native alternative when specified
- **Pulumi** — when TypeScript or Python-based IaC is preferred

All IaC code shall be maintained in version control, peer-reviewed, and deployed via automated CI/CD pipelines.

11.3 Cost Management

Responsibility	Service Provider	Client
Cloud spend optimization recommendations	Monthly	
Rightsizing analysis	Quarterly	
Reserved Instance / Savings Plan planning		Approval
Budget alert configuration		Threshold setting
Cost anomaly detection		
Tagging strategy design		
Actual cloud spend payment		Direct to cloud provider
Budget approval authority		

Section 12 — Data and Analytics Terms

12.1 Data Handling Principles

Service Provider shall handle all Client data in accordance with the following principles:

- **Purpose Limitation:** Data shall be used solely for the purpose for which it was provided
- **Data Minimization:** Service Provider shall collect and process only the minimum data necessary
- **Accuracy:** Service Provider shall take reasonable steps to maintain data accuracy
- **Storage Limitation:** Data shall be retained only as long as necessary
- **Integrity and Confidentiality:** Appropriate security measures shall be maintained at all times

12.2 Data Classification

Client shall classify all data provided to Service Provider using the following scheme:

Classification Level	Description	Handling Requirements
Public	Approved for public distribution	Standard handling
Internal	For internal business use only	Access controls; no external sharing
Confidential	Sensitive business information	Encryption; need-to-know access; logging
Restricted	Highly sensitive; regulated data	Highest controls; audit trail; explicit approval for access
Secret	Trade secrets; legal privilege	Isolated environment; minimal access; legal approval

12.3 Data Residency

Unless otherwise agreed in writing, all Client data shall be stored and processed in data centers located within the United States. Any processing outside the United States requires Client's prior written consent and compliance with applicable data transfer regulations.

PART III — RISK ALLOCATION

Section 13 — Representations and Warranties

13.1 Mutual Representations

Each party represents and warrants that: (a) it is duly organized, validly existing, and in good standing; (b) it has full power and authority to enter into and perform this Agreement; (c) this Agreement is a valid, binding, and enforceable obligation; (d) its performance will not violate any applicable law or any agreement to which it is a party;

and (e) it is not subject to any judgment, order, or injunction that would prevent it from performing its obligations.

13.2 Service Provider Warranties

Service Provider additionally warrants that:

- Services will be performed in a professional and workmanlike manner consistent with industry standards
- Service Provider has the right to grant the intellectual property rights granted herein
- Deliverables will materially conform to the specifications set forth in the applicable SOW for a period of ninety (90) days following acceptance
- Service Provider will not knowingly incorporate any malicious code, viruses, or harmful components into any Deliverable
- Service Provider's personnel are and will remain legally authorized to work in the jurisdiction(s) where Services are performed

13.3 Disclaimer of Implied Warranties

EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, NEITHER PARTY MAKES ANY WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, OR NON-INFRINGEMENT.

Section 14 — Indemnification

14.1 Service Provider Indemnification

Service Provider shall defend, indemnify, and hold harmless Client and its officers, directors, employees, and agents from and against any claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to:

- Any claim that a Deliverable or Service infringes a third party's Intellectual Property Rights
- Service Provider's breach of this Agreement
- Service Provider's gross negligence or willful misconduct
- Service Provider's violation of applicable law
- Any claim by Service Provider's employees or subcontractors against Client

14.2 Client Indemnification

Client shall defend, indemnify, and hold harmless Service Provider and its officers, directors, employees, and agents from and against any claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to:

- Client's breach of this Agreement
- Client Materials infringing a third party's Intellectual Property Rights
- Client's gross negligence or willful misconduct
- Client's violation of applicable law

14.3 Indemnification Procedure

The indemnified party shall: (a) promptly notify the indemnifying party in writing of any claim; (b) give the indemnifying party sole control over the defense and settlement of such claim; and (c) provide reasonable cooperation. The indemnifying party shall not settle any claim in a manner that imposes obligations on the indemnified party without its prior written consent.

Section 15 — Limitation of Liability

15.1 Mutual Limitation

EXCEPT FOR CLAIMS ARISING FROM: (A) BREACH OF CONFIDENTIALITY; (B) INTELLECTUAL PROPERTY INFRINGEMENT; (C) INDEMNIFICATION OBLIGATIONS; (D) GROSS NEGLIGENCE OR WILLFUL MISCONDUCT; OR (E) VIOLATION OF APPLICABLE LAW, NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES, INCLUDING LOSS OF PROFITS, LOSS OF REVENUE, LOSS OF DATA, OR LOSS OF BUSINESS OPPORTUNITY, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

15.2 Cap on Liability

EXCEPT FOR CLAIMS DESCRIBED IN SECTION 15.1 ABOVE, EACH PARTY'S TOTAL AGGREGATE LIABILITY TO THE OTHER PARTY IN CONNECTION WITH THIS AGREEMENT SHALL NOT EXCEED THE GREATER OF: (A) THE TOTAL FEES PAID OR PAYABLE BY CLIENT TO SERVICE PROVIDER DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM; OR (B) ONE MILLION DOLLARS (\$1,000,000.00).

15.3 Uncapped Liability

Notwithstanding Section 15.2, the following claims are not subject to the liability cap:

Category	Rationale
Death or personal injury caused by negligence	Public policy; uninsurable
Fraud or fraudulent misrepresentation	Public policy
Data breach involving >10,000 records	Regulatory and reputational exposure
Willful or intentional misconduct	Deterrence
IP infringement	Protects core business asset

Section 16 — Term and Termination

16.1 Term

This Agreement shall commence on the Effective Date and continue for an initial term of three (3) years (“Initial Term”), unless earlier terminated in accordance with this Section 16. Thereafter, this Agreement shall automatically renew for successive one (1) year periods (each a “Renewal Term”) unless either party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current term.

16.2 Termination for Convenience

Either party may terminate this Agreement or any SOW for convenience upon one hundred twenty (120) days’ prior written notice. In such event:

Termination Trigger	Client Obligation	Service Provider Obligation
T&M Engagements	Pay for all work completed through notice period	Wind down orderly
Fixed Price — Milestone	Pay pro rata through last milestone	Deliver partial work
Fixed Price — Monthly	Pay through end of notice period	Provide orderly transition

Retainer	Pay for full notice period	Provide transition services
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16.3 Termination for Cause

Either party may terminate this Agreement or any SOW immediately upon written notice if the other party:

- Materially breaches this Agreement and fails to cure such breach within thirty (30) days of written notice (or, if the breach is not capable of being cured within thirty (30) days, fails to commence cure within such period and diligently continue cure)
- Becomes insolvent, makes a general assignment for the benefit of creditors, or becomes subject to bankruptcy, receivership, or similar proceedings
- Commits fraud or willful misconduct in connection with this Agreement

16.4 Effect of Termination

Upon expiration or termination:

- Client shall pay all amounts due for Services performed through the effective date of termination
- Each party shall return or destroy the other party's Confidential Information as provided in Section 7.3
- Service Provider shall cooperate in transitioning Services to Client or a successor provider for up to ninety (90) days at mutually agreed transition rates
- Sections 1, 6, 7, 8, 13, 14, 15, and 16.4 shall survive termination

Section 17 — Dispute Resolution

17.1 Escalation

Prior to initiating formal dispute resolution, the parties shall attempt to resolve any dispute through the following escalation process:

Level	Participants	Timeframe
Level 1	Project Managers	5 business days
Level 2	VP / Director level	10 business days

Level 3	C-Suite / Executive	15 business days
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17.2 Mediation

If the parties are unable to resolve a dispute through the escalation process, either party may demand non-binding mediation administered by JAMS or the American Arbitration Association (“AAA”) pursuant to its Commercial Mediation Procedures. The costs of mediation shall be shared equally.

17.3 Arbitration

If mediation fails or is not commenced within thirty (30) days of demand, disputes shall be resolved by binding arbitration administered by JAMS pursuant to its Comprehensive Arbitration Rules and Procedures. The arbitration shall be:

- Conducted in New York, New York (or via videoconference if agreed)
- Heard by a single arbitrator mutually agreed by the parties (or appointed by JAMS)
- Conducted in the English language
- Governed by the Federal Arbitration Act

The arbitrator shall have authority to award any remedy available at law or equity, except that the arbitrator shall not have authority to award punitive or exemplary damages. The arbitrator’s award shall be final and binding and may be entered as a judgment in any court of competent jurisdiction.

17.4 Emergency Relief

Notwithstanding Sections 17.2 and 17.3, either party may seek emergency injunctive or other equitable relief from a court of competent jurisdiction to prevent irreparable harm, including in connection with breaches of confidentiality or intellectual property rights.

17.5 Class Action Waiver

EACH PARTY HEREBY WAIVES ITS RIGHT TO PARTICIPATE IN ANY CLASS ACTION OR COLLECTIVE PROCEEDING WITH RESPECT TO ANY CLAIM ARISING UNDER OR RELATED TO THIS AGREEMENT.

Section 18 — General Provisions

18.1 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of laws principles.

18.2 Force Majeure

Neither party shall be liable for any failure or delay in performance due to causes beyond its reasonable control, including but not limited to acts of God, natural disasters, war, terrorism, civil unrest, government actions, pandemics, epidemics, labor disputes (other than those involving the affected party's own employees), or failures of third-party infrastructure providers. The affected party shall: (a) promptly notify the other party; (b) use commercially reasonable efforts to mitigate the impact; and © resume performance as soon as reasonably practicable. If a force majeure event continues for more than sixty (60) days, either party may terminate the affected SOW upon fifteen (15) days' written notice.

18.3 Assignment

Neither party may assign this Agreement or any rights or obligations hereunder without the prior written consent of the other party, which consent shall not be unreasonably withheld. Notwithstanding the foregoing, either party may assign this Agreement without consent to: (a) an Affiliate; (b) a successor entity in connection with a merger, acquisition, or sale of all or substantially all of its assets; provided that the assignee assumes all obligations of the assigning party and is not a competitor of the other party.

18.4 Notices

All notices required or permitted under this Agreement shall be in writing and shall be deemed delivered when: (a) personally delivered; (b) sent by nationally recognized overnight courier with confirmation; © sent by certified mail, return receipt requested; or (d) sent by email with confirmation of receipt from the recipient's designated representative.

Party	Notice Address
Service Provider	Nexus Technology Solutions Ltd., 350 Fifth Avenue, Suite 4200, New York, NY 10118. Attn: General Counsel. legal@nexustech.com
Client	Meridian Financial Group Inc., 200 West Street, New York, NY 10282. Attn: Chief Procurement Officer. contracts@meridianfg.com

18.5 Entire Agreement

This Agreement, together with all Schedules and SOWs, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements, proposals, representations, and understandings, whether oral or written.

18.6 Amendments

No amendment, modification, or waiver of any provision of this Agreement shall be effective unless made in writing and signed by authorized representatives of both parties.

18.7 Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it enforceable, or if not possible, severed, and the remaining provisions shall continue in full force and effect.

18.8 Waiver

No failure or delay by either party in exercising any right or remedy shall constitute a waiver of such right or remedy. A waiver of any breach shall not constitute a waiver of any subsequent breach.

18.9 Counterparts

This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same agreement. Electronic signatures shall be deemed valid and binding.

18.10 Independent Contractors

The parties are independent contractors. Nothing in this Agreement creates any partnership, joint venture, employment, franchise, or agency relationship. Neither party has authority to bind the other or to incur obligations on the other's behalf.

PART IV — SIGNATURES

Section 19 — Execution

IN WITNESS WHEREOF, the parties have executed this Master Services Agreement as of the Effective Date.

NEXUS TECHNOLOGY SOLUTIONS LTD.

Field	Details
Signature	_____
Name	[Authorized Signatory]
Title	Chief Executive Officer
Date	January 1, 2024
Entity	Nexus Technology Solutions Ltd.
Jurisdiction	Delaware, USA

MERIDIAN FINANCIAL GROUP INC.

Field	Details
Signature	_____
Name	[Authorized Signatory]
Title	Chief Operating Officer
Date	January 1, 2024
Entity	Meridian Financial Group Inc.
Jurisdiction	New York, USA

SCHEDULE A — APPROVED SUBCONTRACTORS

Subcontractor Name	Services Provided	Approval Date	Geographic Limitation
CloudSpark Solutions LLC	Cloud infrastructure monitoring	Jan 1, 2024	North America only
DataGuard Security Inc.	Penetration testing and security audits	Jan 1, 2024	USA only
CodeReview Partners Ltd.	Independent code review	Jan 1, 2024	None
Analytix Data Services	Business intelligence and reporting	Jan 1, 2024	None
QualityFirst Testing Inc.	QA automation and performance testing	Jan 1, 2024	None

SCHEDULE B — SERVICE LEVEL AGREEMENT (SLA)

B.1 Managed Infrastructure SLA

B.1.1 Availability Targets

Environment	Service	SLA Target	Measurement Window	Exclusion Window
Production	Core API	99.95%	Monthly calendar	02:00–04:00 ET Sunday
Production	Web Application	99.95%	Monthly calendar	02:00–04:00 ET Sunday
Production	Database	99.99%	Monthly calendar	Rolling 10-min maintenance
Production	Message Queue	99.9%	Monthly calendar	02:00–04:00 ET Sunday

Staging	All Services	99.0%	Monthly calendar	Anytime with 4hr notice
Development	All Services	95.0%	Monthly calendar	Anytime

B.1.2 Performance Targets

Metric	Target	Measurement Method
API Response Time (P50)	< 200ms	Application Performance Monitoring
API Response Time (P95)	< 500ms	Application Performance Monitoring
API Response Time (P99)	< 1,000ms	Application Performance Monitoring
Page Load Time (P95)	< 3 seconds	Synthetic monitoring
Database Query Time (P95)	< 100ms	Database monitoring
Error Rate	< 0.1%	Log aggregation
Throughput	Sustained 5,000 RPS	Load testing quarterly

B.2 Support SLA

B.2.1 Support Hours

Support Tier	Hours	Channels	Response Method
24/7 Critical Support	24 hours, 365 days	Phone, PagerDuty	On-call engineer
Business Hours Support	Mon–Fri 08:00–20:00 ET	Ticket, Email, Slack	Named engineer

Extended Hours	Mon–Fri 20:00–24:00 ET	Ticket, Email	On-call engineer
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SCHEDULE C — APPROVED TECHNOLOGY STACK

C.1 Programming Languages and Frameworks

Layer	Primary Technology	Approved Alternatives	Notes
Frontend	React 18+	Vue 3, Angular 17+	TypeScript required
Backend API	Node.js (Express/Fastify)	Python (FastAPI/Django), Java (Spring Boot)	
Mobile	React Native	Flutter	iOS and Android
Data Engineering	Python (PySpark)	Scala, Java	
ML / AI	Python (PyTorch, scikit-learn)	TensorFlow, JAX	
Infrastructure	Terraform, Helm	CDK, Pulumi	

C.2 Database Technologies

Use Case	Primary	Alternative	Notes
Transactional (OLTP)	PostgreSQL 15+	MySQL 8+	Hosted; managed service
Analytical (OLAP)	Snowflake	BigQuery, Redshift	
Caching	Redis 7+	Memcached	Managed

Search	Elasticsearch 8+	OpenSearch	
Graph	Neo4j	Amazon Neptune	Requires approval
Time-Series	InfluxDB	TimescaleDB	
Vector / AI	pgvector	Pinecone, Weaviate	

C.3 DevOps and CI/CD Toolchain

Function	Tool	Version	Notes
Source Control	GitHub Enterprise	Latest	Mandatory; no exceptions
CI/CD Pipeline	GitHub Actions	Latest	Secondary: Jenkins
Container Runtime	Docker	24+	
Container Orchestration	Kubernetes	1.28+	EKS / AKS / GKE only
Service Mesh	Istio	1.18+	For microservices only
Secret Management	HashiCorp Vault	1.14+	AWS Secrets Manager alternative
Monitoring	Datadog	Latest	
APM	Datadog APM	Latest	
Log Management	Datadog Logs	Latest	Secondary: Elasticsearch
Alerting	PagerDuty	Latest	
IaC State	Terraform Cloud	Latest	

SCHEDULE D — BACKGROUND CHECK REQUIREMENTS

D.1 Standard Background Check Components

Check Type	Scope	Required For
Criminal History	7 years, all jurisdictions resided	All personnel
Identity Verification	Government-issued ID	All personnel
Education Verification	Highest degree claimed	Senior roles
Employment History	7 years	All personnel
Professional License	Relevant certifications	Where applicable
Credit Check	Summary only; no scores	Financial system access
Sex Offender Registry	National	All personnel
Global Sanctions / Watchlist	OFAC, EU, UN	All personnel

D.2 Timing and Renewal

Requirement	Frequency
Initial check prior to assignment	Pre-engagement
Renewal for existing personnel	Every 2 years
Renewal upon promotion to privileged access	At time of promotion
Re-check following criminal conviction disclosure	Immediately

SCHEDULE E — SERVICE PROVIDER PRE-EXISTING IP (PROPRIETARY ACCELERATORS)

Asset Name	Type	Description	License Granted
NexusFlow CI/CD Framework	Software Library	Pre-built GitHub Actions workflows for standard deployment patterns	Non-exclusive use as incorporated
DataPipeline Accelerator	Software Library	Reusable ETL connectors for major data platforms	Non-exclusive use as incorporated
CloudFoundry IaC Templates	Terraform Modules	Pre-certified Terraform modules for AWS, Azure, GCP	Non-exclusive use as incorporated
SecureBase Auth Library	Software Library	JWT/OAuth2 authentication middleware	Non-exclusive use as incorporated
ApiForge REST Generator	Dev Tool	OpenAPI-driven API scaffolding tool	Non-exclusive use as incorporated
ObservabilityKit	Software Library	Pre-configured Datadog integration library	Non-exclusive use as incorporated
LegalTech Document Parser	Software Library	ML-based document classification and extraction	Non-exclusive use as incorporated
NexusUI Component Library	Frontend Library	React component library with design system	Non-exclusive use as incorporated

SCHEDULE F — DATA PROCESSING AGREEMENT (SUMMARY)

F.1 Roles and Responsibilities

Role	Party	Description
Data Controller	Client	Determines purposes and means of processing

Data Processor	Service Provider	Processes data on Controller's behalf
Sub-Processor	Approved Subcontractors	Process data under Processor's authority

F.2 Processing Activities

Activity	Legal Basis	Data Categories	Retention Period
Providing contracted Services	Contract performance	As specified in SOW	Duration of engagement + 6 months
Security monitoring and logging	Legitimate interest	Access logs, system events	12 months
Billing and account management	Contract performance	Contact, billing information	7 years (tax requirement)
Performance analytics	Legitimate interest	Aggregated, anonymized usage data	24 months

F.3 International Data Transfers

Transfer Scenario	Legal Mechanism
EU/EEA USA	Standard Contractual Clauses (2021/914/EU)
UK USA	UK International Data Transfer Agreement (IDTA)
EU/EEA Other Third Countries	SCCs with supplementary measures
Intra-Group Transfers	Binding Corporate Rules (where applicable)

APPENDIX 1 — INSURANCE REQUIREMENTS

Service Provider shall maintain the following minimum insurance coverage throughout the term of this Agreement:

Insurance Type	Minimum Coverage	Notes
Commercial General Liability	\$5,000,000 per occurrence; \$10,000,000 aggregate	Client named as additional insured
Professional Liability (E&O)	\$10,000,000 per claim	Retroactive date: 3 years prior
Cyber Liability / Technology E&O	\$10,000,000 per occurrence	First-party and third-party coverage
Workers' Compensation	As required by law	All jurisdictions of performance
Employer's Liability	\$1,000,000 per occurrence	
Umbrella / Excess Liability	\$20,000,000 aggregate	Follows form on underlying policies
Crime / Fidelity	\$2,000,000 per occurrence	Employee dishonesty included

All policies shall be maintained with insurers having an A.M. Best rating of A- or better. Service Provider shall provide certificates of insurance within five (5) business days of request.

APPENDIX 2 — COMPLIANCE CERTIFICATIONS

Service Provider maintains and shall provide evidence of the following certifications upon request:

Certification	Scope	Audit Frequency	Current Status
ISO 27001:2022	Information Security Management	Annual	Certified

SOC 2 Type II	Security, Availability, Confidentiality	Annual	Current
ISO 9001:2015	Quality Management	Annual	Certified
ISO 27701:2019	Privacy Information Management	Annual	Certified
PCI DSS Level 1	Payment Card Processing	Annual	Current
HIPAA Business Associate	Healthcare Data	Ongoing	BAA available
FedRAMP Moderate	US Federal Cloud	Annual	In progress
CSA STAR Level 2	Cloud Security	Annual	Certified

End of Master Services Agreement MSA-2024-00847

This document contains 18 Sections, 6 Schedules, and 2 Appendices.

Total estimated pages when formatted: 47–52 pages